

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to youth social media safety.

PETITION OF:

NAME:

Ryan C. Fattman

DISTRICT/ADDRESS:

Worcester and Hampden

SENATE No.

By Mr. Fattman, a petition (accompanied by bill) (subject to Joint Rule 12) of Ryan C. Fattman for legislation relative to youth social media safety. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to youth social media safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The 2024 Official Edition of the General Laws is hereby amended by inserting after
2 chapter 93L the following chapter:-

3 CHAPTER 93M.

4 REGULATING THE USE OF SOCIAL MEDIA PLATFORM ACCOUNTS FOR
5 MINORS

6 SECTION 1. As used in this chapter, the following words shall have the following
7 meanings unless the context clearly requires otherwise:

8 (a) “Social media platform” means a website or internet application that a social media
9 company makes available for an individual to create an account to communicate with other
10 account holders or users through posts, messages, comments, images, videos, livestreams, or
11 other content, whether publicly or privately, and that includes features designed to enable social
12 interaction, content sharing, and algorithmic content feeds.

(b) “Minor” means any individual younger than eighteen years of age.

(c) “Parent or guardian” means a person having legal custody of a minor, including a biological or adoptive parent, legal guardian, or court-appointed custodian.

(d) “Account” means a persistent, user-specific identity created on a social media platform enabling posting, messaging, following, subscribing, or other interactive features.

(e) “Hours of use” means cumulative active usage time of a social media platform account measured by the platform, excluding time spent solely on age-verification prompts or consent processes.

(f) “Department” means the department of elementary and secondary education.

SECTION 2. AGE-BASED ELIGIBILITY AND ACCESS.

(a) Commencing November 1, 2026, a social media platform may not permit a minor under the age of fifteen to be an account holder. Social media platforms shall implement reasonable age-verification mechanisms to prevent account creation by such individuals.

(b) For those age fifteen and sixteen, a social media platform may permit account creation only upon verified parental or guardian consent and must enforce a cap on hours not to exceed a baseline daily maximum of two hours of use per calendar day.

(c) For those age seventeen, a social media platform may permit account creation only upon verified parental or guardian consent and must enforce a cap on hours not to exceed a baseline daily maximum of three hours of use per calendar day.

(d) Upon an account holder's eighteenth birthday, as recorded by the initial birthdate selected during account creation, the platform shall notify the user that all minor restrictions have been lifted and cease enforcement of the minor-specific requirements herein, except as otherwise required by law.

SECTION 3. PENALTIES

(a) Civil penalties. A social media platform that knowingly or negligently permits account creation or continued use in violation of section 2 shall be subject to a civil penalty not to exceed \$10,000 per violation.

SECTION 4. ENFORCEMENT

The department shall promulgate regulations to enforce this act and shall:

(a) Establish processes or means by which a social media company may meet the age verification requirements of this chapter; provided, however, that social media platforms shall collect only the minimum personal data necessary to verify age and parental consent

(b) Establish acceptable forms or methods of identification

(c) Establish requirements for providing confirmation of the receipt of any information provided by a person seeking to verify age under this chapter

(d) Establish processes or means to confirm that a parent or guardian has provided consent for the minor to open or use an account pursuant to the provisions of this chapter

50 (e) Establish requirements for retaining, protecting, and securely disposing of any
51 information obtained by a social media company or its agent as a result of compliance with the
52 requirements of this chapter

53 (f) Require that information obtained by a social media company or its agent in order to
54 comply with age verification requirements may not be used for any other purpose; provided,
55 however, that if the department permits an agent to process verification requirements, that the
56 agent have its principal place of business in the United States of America

57 (g) Promulgate these regulations consistent with state and federal law

58 SECTION 5. This act shall take effect on July 1, 2026.